Customer Data and Privacy

Document code DP-06. Version 1.0. Effective 1 January 2024. This is a synthetic policy for the fictional company Northwind Gifts. It is used only for a software demonstration.

1. Who we are

1.1 Data controller. Northwind Gifts Ltd is the controller of the personal data described in this policy.

1.2 Contact. Privacy questions can be sent to the data protection officer at privacy@northwindgifts.example.

2. What we collect

2.1 Account and order data. We collect name, email address, delivery address, phone number and order history.

2.2 Payment data. Card numbers are handled by our payment processor. Northwind Gifts does not store full card numbers or security codes.

2.3 Device and cookie data. We collect device type, pages viewed and cookie identifiers when a customer uses the website.

2.4 Call recordings. Customer service calls are recorded for training and quality. Recordings are deleted after 90 days.

3. Why we use data

3.1 To deliver orders. We use account and order data to take payment, deliver orders and handle returns.

3.2 Legal duties. We keep tax and accounting records because the law requires it.

3.3 Marketing with consent. We send marketing emails only to customers who have given consent.

3.4 Fraud prevention. We use order and device data to detect and prevent fraud. This is a legitimate interest.

4. Retention

4.1 Order and invoice records. Order and invoice records are kept for 7 years because of tax law.

4.2 Marketing consent. Marketing consent records are kept until the customer withdraws consent, or for 24 months after the last activity on the account, whichever comes first.

4.3 Inactive accounts. Accounts with no login or order for 36 months are deleted.

4.4 Support tickets. Customer service tickets are kept for 3 years.

4.5 Wholesale records. Wholesale account records are kept for 7 years after the account is closed.

5. Customer rights

5.1 Access requests. A customer can ask for a copy of their personal data. Northwind Gifts replies within 30 days.

5.2 Erasure. A customer can ask for their data to be deleted. Northwind Gifts completes the deletion within 30 days, except for data that must be kept by law.

5.3 Correction. A customer can ask for wrong data to be corrected. Corrections are made within 30 days.

5.4 Stopping marketing. A customer can opt out of marketing at any time. Northwind Gifts stops marketing emails within 48 hours.

5.5 Data portability. A customer can ask for their order history as a CSV file.

5.6 Identity checks. Northwind Gifts may ask for proof of identity before acting on a rights request.

6. Sharing data

6.1 Couriers. We share name, address and phone number with couriers to deliver parcels.

6.2 Payment processor. We share payment details with our payment processor.

6.3 No sale of data. Northwind Gifts does not sell personal data.

6.4 International transfers. If data is sent outside the UK, we use approved safeguards such as standard contract clauses.

7. Cookies

7.1 Essential cookies. Essential cookies are always on. They are needed for the basket and login.

7.2 Optional cookies. Analytics and marketing cookies are used only if the customer gives consent.

7.3 Cookie consent expiry. Cookie consent is asked again after 12 months.

8. Children

8.1 Account age. Customers under 16 cannot create an account without a parent or guardian.

8.2 Marketing to minors. Northwind Gifts does not send marketing emails to anyone under 18.

9. Security and breaches

9.1 Security measures. Personal data is encrypted in transit and at rest.

9.2 Staff access. Staff can see personal data only if they need it for their job.

9.3 Reporting a breach to the regulator. If a personal data breach puts people at risk, Northwind Gifts reports it to the Information Commissioner's Office within 72 hours.

9.4 Telling customers. If the breach is likely to cause a high risk to customers, Northwind Gifts tells them without undue delay.

10. Links to other policies

10.1 Erasure and invoices. If a customer asks for erasure, order and invoice records are kept for the period in clause 4.1. Other data is deleted.

10.2 Erasure and loyalty points. Closing an account or asking for erasure removes the customer's loyalty points, as set out in the Loyalty Programme policy.